

Tracy McMinn, et al. v. Katherine Coull, 26CV-0148

Hearing: Motion to Strike Plaintiffs' Claim for Punitive Damages

Date: September 17, 2026

TENTATIVE RULING

Daniel Dejong, Tracy McMinn and Bently Wilson (collectively Plaintiffs) filed this action against Katherine K. Coull, Trustee of the Coull Family Trust dated 10/26/89, on March 11, 2026. Defendant is Plaintiffs' landlord, and Plaintiffs allege claims for 1) failure to provide habitable dwelling, 2) breach of covenant of the right to quiet enjoyment and possession of the property, 3) nuisance and 4) negligence.

Plaintiffs allege that throughout their tenancies, they experienced infestations, electrical issues, mold, heating issues and unsanitary conditions, amongst other issues, which they allege rendered the property untenable and substandard. Plaintiffs allege that the issues were reported but not fully repaired, which caused damage or loss of their personal property, moving costs and other expenses, as well as physical injury, pain, anxiety, discomfort, annoyance and distress. (Cmpl., ¶¶ 14-28.)

Defendant now moves pursuant to Code of Civil Procedure section 436 to strike the portions of the complaint in the first, second and third causes of action that allege exemplary and punitive damages, namely ¶ 50, ¶ 63, ¶ 76, as well as in the prayer.

Defendant's counsel declares that she met and conferred with counsel for Plaintiffs prior to filing the motion, but the parties could not come to an agreement. (Declaration of Veronica Webb, ¶¶ 4-8.)

I. Legal Standard

Code of Civil Procedure section 436 permits a court to strike: (1) "any irrelevant, false, or improper matter inserted in any pleading"; and (2) "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." As with demurrers, the grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

In ruling on a motion to strike, courts do not review allegations in isolation but rather read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:197.5.)

The adequacy of punitive damages allegations may be tested by motion to strike. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 164; *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 86.)

Punitive damages are governed by Civil Code section 3294, which requires “clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice” (Civ. Code, § 3294, subd. (a).)

Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

“‘Despicable conduct’ is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people.” (CACI Nos. 3940, 3941.) “Conscious disregard of rights is conduct by a defendant who is aware of the probable dangerous consequences of such conduct to plaintiff’s interests and willfully and deliberately fails to avoid those consequences.” (*Smith v. Brown-Forman Distillers Corp.* (1987) 196 Cal.App.3d 503, 516 [citation omitted].)

Conclusory allegations are insufficient to support a prayer for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643 [general allegations insufficient to meet pleading requirement].)

II. Discussion

Defendant contends that the allegations of the complaint amount to nothing more than supposed negligent conduct, and that Plaintiffs merely tack on conclusory statements of intent and conscious disregard at the end of their causes of action. Defendant further contends that the complaint lacks any specific factual allegations showing that Defendant acted maliciously, oppressively or fraudulently, and fails to plead facts that rise to the level of despicable conduct or willful and conscious disregard of Plaintiffs’ safety and rights.¹

Plaintiffs respond by laying out the allegations of the complaint, including that Defendant was on actual and constructive notice of the conditions of the property that rendered it untenable, substandard, and in violation of state and local statutes, including (1) Civil Code §§ 1714, 1927, 1941, 1941.1, 1942.4, 3479, 3481, 3491 and 3501; (2) Health and Safety Code §§ 17920.3 and 17995; and (3) San Luis Obispo Municipal Code Chapter 15.02

¹ Defendant also contends that Plaintiffs improperly allege facts against all defendants together. However, co-defendant Thomas Coull has been dismissed from the action, leaving Katherine Koull as the sole remaining defendant.

Plaintiffs further argue that the language of the complaint alleges the mindset with which the Defendants acted and identifies facts from which a jury might infer that Defendants acted maliciously with regard to the conditions of the property, such as by failing to correct the conditions when notified of them. They highlight the allegation that Defendants had both a “pattern and practice of failing to implement basic preventative maintenance, timely repair work, inspection and fumigation efforts” and that Defendants willfully failed and refused to maintain the Property in a habitable condition in numerous respects – which jeopardized the health and safety of the tenant Plaintiffs. (Compl., ¶ 26.)

Reviewing the allegations of the complaint as a whole, the Court finds that Plaintiffs have alleged sufficient facts to state a claim that Defendant was aware of the probable dangerous consequences of her conduct in failing to repair or correct the myriad and significant alleged problems with the units and that she willfully and deliberately failed to make the necessary repairs and avoid those consequences, such that the complaint states a claim for punitive damages. (See *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867 [punitive damages sufficiently pleaded where complaint alleged facts setting forth long existing physical conditions of the premises which portended danger for the tenants and set out that respondents knew of those conditions for up to two years, had power to make changes, but failed to take corrective and curative measures]; *Rivera v. Sassoon* (1995) 39 Cal.App.4th 1045, 1047 [punitive damages awarded at trial for breach of warranty of habitability].)

ORDER (PROPOSED)

Defendant’s motion to strike is denied. Defendant shall file and serve her answer within ten days of service of notice of this order. Plaintiffs shall serve notice.